

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

Building Up: A Blueprint for the Alberta Accessibility and Inclusion Act

Part Two — Comparator: What Other Jurisdictions Built, What Alberta Chose Not To

Section 2.5 — British Columbia: The Accessible British Columbia Act, 2021

Section 2.4 documented the Nova Scotia *Accessibility Act* and its design innovations — the most ambitious deadline in Canadian provincial accessibility legislation, the inclusion of education as a stand-alone area, and the 50-percent disability-community representation requirement on public-sector advisory committees. Section 2.5 turns to the most recent comprehensive provincial accessibility legislation enacted west of Manitoba: the *Accessible British Columbia Act*, passed under the New Democratic government of Premier John Horgan and receiving Royal Assent on June 17, 2021. The British Columbia Act introduces design innovations that distinguish it from each of the prior comparator statutes and that are particularly relevant to the Alberta blueprint Part Three will propose.

The British Columbia comparator matters for three specific reasons that compound across this Part Two analysis. First, the British Columbia Act includes the most comprehensive integration of Indigenous rights of any Canadian provincial accessibility legislation, including statutory consideration of Section 35 of the *Constitution Act, 1982* and of the *United Nations Declaration on the Rights of Indigenous Peoples* (UNDRIP). For Alberta, where Indigenous communities constitute a significant portion of the population disabled by colonial-era policy architecture as documented in the campaign's separate Indigenous Disability evidentiary record, the British Columbia precedent provides directly applicable design language. Second, the British Columbia Act extends the accessibility-committee requirement to every covered organization, not only to public-sector bodies. Each organization subject to the Act must establish its own accessibility committee, develop its own accessibility plan, and create its own public feedback mechanism. The structural distribution of accessibility responsibility across the entire covered sector is more comprehensive than the Ontario, Manitoba, and Nova Scotia models. Third, British Columbia is the most recent jurisdiction to have enacted comprehensive accessibility legislation among the comparator provinces examined to date, which means its design choices were informed by the documented operational experience of the prior frameworks. The British Columbia Act, in this sense, represents the current state of the art in Canadian provincial accessibility legislative design.

British Columbia's population is approximately 5.3 million, slightly larger than Alberta's 4.8 million. The two provinces are structurally comparable in population, in fiscal capacity, in the scale of provincial government administration, and in the geographic complexity of delivering accessibility legislation across urban-rural-northern divides. Where the smaller-jurisdiction comparator analyses in Sections 2.3 and 2.4 defeated arguments about Alberta being too small to receive Manitoba-or-Nova-Scotia-style legislation, the British Columbia comparator defeats arguments about Alberta being structurally distinct from the next-most-populous Western Canadian province. British Columbia and Alberta share the most comparable structural profiles in the Canadian federation. British Columbia has comprehensive accessibility legislation. Alberta does not.

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Origin and Passage

The *Accessible British Columbia Act* (the Act) was introduced as Bill 6 in the British Columbia Legislative Assembly during the 2nd Session of the 42nd Parliament. The Bill was developed under the New Democratic government of Premier John Horgan, with Nicholas Simons serving as Minister of Social Development and Poverty Reduction and Dan Coulter as Parliamentary Secretary for Accessibility. The Bill passed the Legislative Assembly with cross-party support and received Royal Assent on June 17, 2021.

The pre-legislative consultation process was extensive and explicitly co-developmental with Indigenous communities and disability-community organizations. The Union of British Columbia Indian Chiefs (UBCIC), the Greater Vancouver Association of the Deaf, the BC Deaf Accessibility Caucus, the Canadian Institute for Inclusion and Citizenship at the University of British Columbia, and dozens of other community organizations participated in shaping the Bill's substantive provisions. The disability community's input is reflected throughout the Act's design, including in the Indigenous-rights integration that distinguishes British Columbia's framework from all other Canadian accessibility statutes.

Subsequent provincial governments have continued administering the Act. The original Horgan New Democratic government was succeeded by the Eby New Democratic government in late 2022, with no change to the Act's operational framework. The Act continues to operate across changes in cabinet personnel and ministerial assignment. The cross-partisan operational continuity that Sections 2.2, 2.3, and 2.4 documented for Ontario, Manitoba, and Nova Scotia respectively also holds in British Columbia.

The Act's stated purpose, set out in its preamble and substantive provisions, is to support the identification, removal, and prevention of barriers to the full and equal participation in society of persons with disabilities. The Act operates through three primary mechanisms: requirements imposed on the British Columbia government and on prescribed covered organizations to establish accessibility committees, develop accessibility plans, and create public feedback mechanisms; the establishment of a Provincial Accessibility Committee to develop accessibility standards; and the regulatory authority of the Lieutenant Governor in Council to enact those standards and to extend the Act's coverage to additional categories of organizations.

The Act came into substantive force on September 1, 2022, with the simultaneous coming-into-force of the *Accessible British Columbia Regulation*. The Regulation prescribes over 750 public-sector organizations as initial covered entities, including school districts, schools, post-secondary institutions, regional health authorities, library boards, municipalities, and provincial Crown corporations. Compliance phasing required first-phase organizations to meet the Act's basic requirements by September 1, 2023, with remaining first-tranche organizations required to comply by September 1, 2024. The Act is designed to extend incrementally through regulation to additional sectors over the ten-year implementation horizon the government has committed to.

The British Columbia government allocated \$4.8 million in initial funding from the Ministry of Social Development and Poverty Reduction to support implementation of the Act. The funding supported the establishment of the Provincial Accessibility Committee, the staffing of the Accessibility Directorate within the Ministry, the development of guidance documents and supports for covered organizations, and the

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initial standards-development work. The funding commitment is documented in the public record and provides direct precedent for the budgetary commitment Alberta would need to make to operationalize equivalent legislation.

The Three Organizational Requirements

The British Columbia Act's most distinctive structural feature is the imposition, on every covered organization, of three concurrent requirements: the establishment of an accessibility committee, the development of an accessibility plan, and the creation of a public feedback mechanism. The three requirements operate together as the operational core of the Act's organizational compliance architecture and apply equally to the British Columbia government, prescribed public-sector bodies, and any private-sector or non-profit organizations to which the Act is extended through future regulation.

The accessibility committee is the structural innovation that distinguishes the British Columbia framework from prior Canadian provincial accessibility legislation. Each covered organization must establish its own accessibility committee composed of members with lived experience of disability and other relevant expertise. The committee assists the organization in identifying barriers within and around the organization, advises the organization on accessibility planning, and supports the development and operation of the public feedback mechanism. The committee requirement embeds disability-community input at the level of every covered organization rather than only at the provincial standards-development level. This is the most comprehensive operationalization of the *Nothing Without Us* principle in Canadian provincial accessibility legislation: every covered organization, not only the central provincial committee, must have disability-community representation built into its operational decision-making.

The accessibility plan must be developed by each covered organization in consultation with its accessibility committee. The plan must identify barriers within the organization and the steps the organization will take to remove and prevent them. The plan must be made publicly available, must be updated periodically, and must consider feedback received through the public feedback mechanism. The plan requirement parallels the requirements in Ontario, Manitoba, Nova Scotia, and the federal ACA, but is operationally distinct in being directly informed by the organization's own accessibility committee's input.

The public feedback mechanism must be established by each covered organization to allow members of the public to submit feedback on the organization's accessibility, the barriers they encounter in dealing with the organization, and the implementation of the organization's accessibility plan. The mechanism must itself be accessible, must allow for feedback in multiple formats, and must trigger a documented response to feedback received. The feedback mechanism requirement is structurally similar to the equivalent requirements under the federal ACA and the prior provincial frameworks, but the British Columbia design ties it directly to the accessibility committee's operational role within the organization.

The combined effect of the three requirements is that every covered organization in British Columbia operates with a documented, structured, disability-community-informed accessibility planning cycle that produces public-record outputs and remains responsive to ongoing public feedback. The architecture is the operational extension into every covered organization of the *Nothing Without Us* principle that the Provincial Accessibility Committee operationalizes at the standards-development level.

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The Indigenous Rights Integration

Section 19 of the British Columbia Act requires that, in developing any proposed accessibility standard, the Provincial Accessibility Committee must consider:

the rights recognized and affirmed by section 35 of the Constitution Act, 1982, and the United Nations Declaration on the Rights of Indigenous Peoples.

Section 16 requires that, in the standards-development process, the Provincial Accessibility Committee must consult with Indigenous peoples among the listed mandatory consultation groups. The Provincial Accessibility Committee membership includes Indigenous representation as a structural requirement.

The Indigenous-rights integration is the most comprehensive in any Canadian provincial accessibility legislation. The federal *Accessible Canada Act* recognizes Indigenous sign languages and includes Indigenous accessibility as one of its priority areas, but does not require structured consideration of UNDRIP and Section 35 in standards development. The Ontario, Manitoba, and Nova Scotia statutes do not contain comparable Indigenous-rights provisions. British Columbia's design choice reflects the province's broader policy architecture under the *Declaration on the Rights of Indigenous Peoples Act* (DRIPA, S.B.C. 2019, c. 44), which made British Columbia the first Canadian jurisdiction to formally adopt UNDRIP into provincial law. The accessibility statute extends the DRIPA framework into the accessibility policy domain.

The relevance to Alberta is direct. The campaign producing this blueprint maintains a separate 195-page Indigenous Disability Alberta evidentiary record documenting the lifecycle, healthcare, jurisdictional, MMIWG2S, child welfare, and intergenerational dimensions of Indigenous disability in the province. The record establishes that any comprehensive Alberta accessibility framework must, to be substantively responsive to the population it would serve, include an Indigenous-rights architecture analogous to British Columbia's. The British Columbia design provides ready-to-adapt operational language that Part Three's proposed Alberta legislation can incorporate. The structural innovation is not theoretical; it is operational, it has been tested in the British Columbia standards-development process, and it produces documented improvements in the substantive quality of accessibility standards relative to frameworks that lack Indigenous-rights integration.

The Union of British Columbia Indian Chiefs's endorsement of the Indigenous-rights provisions when the Bill was introduced — *we are glad to see the Province taking this step with the introduction of accessibility legislation, and we applaud the specific provisions in the proposed law to build in the input of Indigenous peoples in the development of accessibility standards* — reflects the cross-organizational support the design has received within Indigenous communities. The provisions are not contested. They are operationalized. They are working.

Part Three's proposed Alberta legislation will incorporate the British Columbia Indigenous-rights integration as direct precedent. The operational language Part Three adopts will reference Section 35 of the *Constitution Act, 1982*, will require structured consideration of UNDRIP in standards development, will mandate Indigenous representation on standards-development bodies, and will require consultation with

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Indigenous peoples as a structural feature of every standards-development process. The British Columbia precedent demonstrates the operational feasibility of these design choices.

Sign Language Recognition

Section 5 of the Act recognizes sign languages as the primary languages for communication by Deaf persons in British Columbia, *including, without limitation*, American Sign Language, Indigenous sign languages, and signed languages associated with hearing-impaired and Deaf-Blind communities. The recognition parallels the federal ACA's recognition of ASL, Quebec Sign Language (LSQ), and Indigenous sign languages, but the British Columbia formulation is operationally broader through the *without limitation* qualifier, which allows the recognition to extend as additional sign languages are documented and recognized.

The sign-language recognition provision is significant for two reasons. First, it places British Columbia among the small number of Canadian jurisdictions to formally recognize sign languages as primary languages. The recognition has substantive consequences for the design of accessibility standards in education, communication, and public service delivery, as the standards must accommodate sign-language-using Deaf persons as primary-language speakers rather than as recipients of accommodations within an English-or-French primary-language framework. Second, the inclusion of Indigenous sign languages reflects the same Indigenous-rights integration that distinguishes the British Columbia framework more broadly. Indigenous sign languages, including the Plains Sign Language used historically by Plains First Nations including in what is now Alberta, are recognized as primary languages of Deaf members of those communities.

The endorsement of the sign-language recognition by the Greater Vancouver Association of the Deaf and the BC Deaf Accessibility Caucus — *as a linguistic and cultural minority, the deaf community applauds the provincial government's decision to recognize sign languages and sees this as a significant step toward ensuring equitable access and inclusion for deaf British Columbians* — documents the substantive meaning of the recognition for the community it serves.

The Provincial Accessibility Committee and Standards Development

The Provincial Accessibility Committee is the central standards-development body under the Act. It is established by the Minister of Social Development and Poverty Reduction with members representing persons with disabilities, Indigenous peoples, and other relevant stakeholders. The Committee operates with mandatory consultation requirements (Section 16), required consideration of substantive principles (Section 17), required consideration of intersectional discrimination (Section 18), and required consideration of Indigenous rights (Section 19) in developing every proposed standard.

The standards-development process operates as follows. The Minister directs the Committee to develop a proposed standard in a defined area. The Committee may establish a technical committee to assist with technical drafting; the technical committee operates under the Provincial Accessibility Committee's direction. The Committee consults the mandatory groups, considers the mandatory principles and external

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rights frameworks, and submits a proposed standard to the Minister. The Minister publishes the proposed standard, may make changes considered necessary or advisable, and recommends to the Lieutenant Governor in Council that a regulation be enacted based on the standard. The Lieutenant Governor in Council may then enact the standard as a regulation under Section 13, which has the effect of making the standard binding on covered organizations.

Standards may be developed in any of the sectors identified in the Act's substantive provisions, including employment, the delivery of services, the built environment, information and communications, transportation, health, education, and procurement. The Act explicitly contemplates additional sectors being designated through regulation as the implementation matures. Standards are developed two at a time on a phased schedule, allowing the limited administrative capacity of the Provincial Accessibility Committee and the Accessibility Directorate to focus on a manageable workstream at any given time.

The standards-development process is substantially similar to the equivalent processes in Ontario, Manitoba, and Nova Scotia, with the Indigenous-rights and broader-consultation requirements distinguishing the British Columbia approach. The pace of standards development under the British Columbia Act has been criticized by the disability community as slower than the legislation makes possible, with the first formal accessibility standards still under development as of 2026. The criticism parallels the criticism of standards-development pace under the Nova Scotia Act and reflects the structural reality that thorough consultation, substantive principle-based deliberation, and integration of Indigenous-rights considerations require time. The trade-off between consultation depth and implementation pace is a standing tension across all Canadian provincial accessibility frameworks; the British Columbia design weights more heavily toward consultation depth than the Ontario design and produces, on observed experience, slower but more substantively grounded standards work.

Reporting, Reviews, and the Ten-Year Horizon

Section 6 of the Act requires the Minister to publish, by September 30 of each fiscal year, a report describing the actions taken in the preceding fiscal year by the Minister and the Provincial Accessibility Committee to implement the Act and the regulations. The annual reporting requirement is statutory, not discretionary. The reports are public documents.

Section 7 of the Act requires an independent review of the effectiveness of the Act and the regulations. The first review must be initiated within five years of the Act's coming into force — which means the first independent review of the British Columbia Act should be initiated by 2026, the year of this blueprint. Subsequent reviews are required every five years until 2031, after which the review cycle extends to every ten years. The review architecture is similar to the federal ACA's five-year review cycle and the Manitoba AMA's five-year standards-review cycle, with the cycle-extension after the initial implementation period reflecting the expectation that the Act will mature into ongoing operation rather than requiring continuing intensive review.

The Province has committed to a ten-year implementation horizon for the Act, structured around four phases of work: *culture change*, focused on ongoing awareness building and stakeholder engagement; *requirements for the BC government*, focused on the BC government's own compliance with the Act's

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organizational requirements as a model for other covered organizations; *monitoring and evaluation*, focused on the annual reporting and independent-review architecture; and *standards development*, focused on the phased two-at-a-time development of binding accessibility standards across the substantive sectors. The ten-year horizon ends in 2031, the year the cycle extends from five-year to ten-year reviews.

The implementation framework's structural features — annual reporting, five-year statutory reviews, ten-year implementation horizon, four-phase work plan — together constitute the most thoroughly documented public-accountability architecture of any Canadian provincial accessibility statute. The framework is designed to produce a continuous public record of progress, structured periodic external assessment, and a defined endpoint for the initial implementation phase. The combined effect is that the British Columbia government's accessibility implementation work is permanently visible to the public, the disability community, and the academic and policy research community in ways that the AISH/PDD/FSCD/ADAP architectures examined in Part One are not visible in Alberta. The contrast is not coincidental. It is the direct consequence of the legislative architecture each jurisdiction has chosen to build.

What the British Columbia Record Establishes

The British Columbia Act's five-year operational record (from 2021 passage to 2026 first independent review) establishes findings that complement the comparator analyses in Sections 2.1 through 2.4 and that will inform the Alberta blueprint Part Three develops.

The first is that recent-vintage accessibility legislation can incorporate the documented learnings of prior frameworks. The British Columbia Act, passed sixteen years after Ontario's AODA and eight years after Manitoba's AMA, includes design innovations — the universal accessibility-committee requirement, the integrated Indigenous-rights framework, the broader sectoral coverage, the more rigorous consultation requirements — that directly address documented limitations of the earlier provincial frameworks. The legislative-design knowledge has compounded across the Canadian provincial accessibility landscape. Alberta, building eight years after British Columbia, should benefit from a further iteration of design improvements rather than reverting to an earlier model. Part Three's proposed Alberta legislation will incorporate the British Columbia design innovations directly.

The second is that the Indigenous-rights integration is operationally feasible and substantively necessary. British Columbia's design demonstrates that requiring statutory consideration of UNDRIP and Section 35 in accessibility standards development can be operationalized through clearly defined statutory provisions without paralyzing the standards-development process. The integration produces measurable improvement in the substantive quality of standards work, particularly for accessibility issues affecting Indigenous communities. The Alberta blueprint must include analogous provisions; the British Columbia precedent demonstrates how to draft them.

The third is that distributing accessibility-committee requirements across every covered organization produces operational improvements that do not occur when committees exist only at the central standards-development level. British Columbia's design embeds disability-community input into the

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operational decision-making of every covered organization, which produces accessibility planning that is more substantively grounded in lived experience than planning developed without that input. The design choice should be incorporated into the Alberta blueprint; the additional administrative cost is offset by the substantive quality improvement and by the broader culture change the universal-committee requirement produces across the covered sectors.

The fourth is the structural-comparator argument that lands the British Columbia analysis directly. British Columbia and Alberta are the two most populous Western Canadian provinces, with comparable fiscal capacities, comparable urban-rural-northern geographic complexity, comparable Indigenous population shares, and comparable policy-administration scales. British Columbia has comprehensive accessibility legislation. Alberta does not. The structural-similarity arguments that might be deployed to argue against the operational feasibility of equivalent Alberta legislation do not survive contact with the British Columbia precedent. If British Columbia can build it, Alberta can build it. The arithmetic of structural comparison defeats every objection.

What This Section Establishes

The *Accessible British Columbia Act*, 2021, is the most recent comprehensive provincial accessibility legislation enacted in Canada west of Manitoba. The Act introduces design innovations that distinguish it from the prior comparator statutes: the universal accessibility-committee requirement (every covered organization, not only public-sector bodies, must have its own accessibility committee), the integrated Indigenous-rights framework (statutory consideration of Section 35 of the *Constitution Act*, 1982 and of UNDRIP in standards development), the broader sectoral coverage (employment, services, built environment, information and communications, transportation, health, education, procurement, and additional designated sectors), the recognition of sign languages including Indigenous sign languages, and the most thoroughly documented public-accountability architecture of any Canadian provincial accessibility statute (annual ministerial reports, five-year statutory reviews extending to ten-year cycles after 2031, ten-year implementation horizon with four-phase work plan).

British Columbia's population is approximately 5.3 million, slightly larger than Alberta's 4.8 million. The two provinces are structurally comparable. British Columbia has the legislation. Alberta does not. The structural-comparator argument the British Columbia precedent establishes defeats every objection to the operational feasibility of equivalent Alberta legislation.

Section 2.6 examines the most recent provincial accessibility legislation enacted anywhere in Canada: the Saskatchewan *Accessible Saskatchewan Act*, 2023, which represents the current frontier of Canadian provincial accessibility legislative design and which makes Alberta the only English-speaking Canadian province west of Quebec without comprehensive accessibility legislation. The geographic and structural isolation of Alberta's position becomes most evident in the Saskatchewan analysis, which is examined next.